

# LUX BLUEPRINT LLC

## DISCLAIMER

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## SELLER IN POSSESSION AGREEMENT

This is an Addendum (hereinafter the "Agreement") to the Purchase Contract dated:  
\_\_\_\_\_ Between the follow parties (the "Parties"):

SELLER: \_\_\_\_\_

BUYER: \_\_\_\_\_

PREMISES: \_\_\_\_\_

The following additional terms and conditions are hereby included as part of the Purchase Contract described above. This agreement is intended to grant temporary possession of the Premises described herein after the close of escrow and is not intended to establish a Landlord/Tenant relationship. The Residential Landlord and Tenant laws of Arizona shall not apply to this Agreement.

OCCUPANCY PERIOD: Upon execution of this Agreement by the Parties. Buyer hereby grants permission to Seller to retain possession of the premises from \_\_\_\_\_ to \_\_\_\_\_ After the date title is transferred [close of escrow]. Seller shall pay Buyer rent in the amount of \$ \_\_\_\_\_ per day for said possession. All terms and conditions of this Agreement shall remain in effect until the Premises are vacated by the Seller. If the seller has not vacated by the agreed upon date above, they will be charged \$ \_\_\_\_\_ per day.

SECURITY DEPOSIT; ESCROW HOLDBACK: From Seller's proceeds at close of escrow, Seller shall leave in escrow a holdback of \$ \_\_\_\_\_ as a Security Deposit under the terms and performance of this Agreement. This Agreement shall serve as an instruction to Escrow Officer to retain the Escrow Holdback pursuant to the terms and conditions herein.

USE OF SECURITY DEPOSIT: Seller agrees to surrender possession of the Premises to the Buyer in substantially the same condition as at close of escrow. Buyer may retain all or part of the Security Deposit for payment of any obligation, charges, alterations or repairs to the premises ("Damages") that arose out of Seller's use and occupancy under the terms of this Agreement. Buyer shall direct Escrow Officer pay Buyer from the Security Deposit the amount of Damages identified to Escrow Officer, and for Escrow Officer to return to Seller any unused portion of the Security Deposit within ten days after the Seller vacates the premises with an itemization of any monies withheld (which may not be unreasonably withheld).

USE OF PREMISES: Seller shall use the Premises as a personal residence only and shall abide by all laws and governmental regulations and covenants, rules and regulations of the Homeowners Association, if applicable, with respect to the use and occupancy of the Premises.

UTILITIES/SERVICES: Seller shall have all utilities and services in Seller's name and shall pay all charges for utilities costs that apply for the term on this Agreement.

INSURANCE: Seller's personal property (including vehicles) is not insured by Buyer, and, if applicable, not by the homeowners association, against loss or damage due to fire, theft, vandalism, rain, water, criminal or negligent acts of others, or any other cause. Seller is to carry Seller's own insurance to protect Seller from such loss. Buyer shall secure and maintain adequate hazard insurance to cover the change of ownership status of the Premises.

**MAINTENANCE:** Seller shall maintain the Premises, including, as applicable, the pool, spa, landscaping, and grounds, and all personal property included in the sale in substantially the same condition as on the date of acceptance of this Agreement. Except as provided in the Agreement, Seller shall not make any alterations or changes to the premises in any way without Buyer's prior written consent. At closing, Seller shall deliver possession of and Premises to Buyer in the condition required by this paragraph.

**LIENS, JUDGMENTS AND ENCUMBRANCES:** Seller will not allow any liens, judgments or other encumbrances to be placed against the premises during the term of this Agreement.

**ASSIGNMENT; SUBLETTING:** Seller shall not assign or sublet all or any part of the Premises, or assign or transfer the right to occupy the premises. Any assignment, transfer or subletting of the Premises by voluntary act of the Seller, by operation of law or otherwise, without Buyer's prior written consent shall give Buyer the right to terminate Seller's right to possession.

**LEGAL COSTS:** Seller agrees to pay all costs in any legal action that may be instituted by Buyer to enforce the terms hereof or for the eviction of Seller from the premises including any reasonable attorneys fees.

**BUYER'S RIGHT TO ENTER PREMISES:** Buyer or Buyer's authorized agent shall have the right to enter the Premises in case of emergency or for the purpose of inspection, performing necessary repairs or alterations, or to supply necessary or agreed upon service. Except in the case of an emergency, Buyer shall enter the premises only during reasonable hours and only after 24 hours notice (oral or written).

**CCRs:** Seller shall be responsible to pay all fines and assessments levied against Buyer or the Premises due to Seller's actions or conduct in violation of the CC&Rs or Rules and Regulations of the Homeowners Association.

**WAIVER:** The waiver of any breach shall not be construed as a continuing waiver of the same or any subsequent breach.

**ENTIRE AGREEMENT:** This Agreement contains the entire agreement between Seller and Buyer with regard to the Seller's possession of the Premises after the close of escrow. No other agreement, or statement of promise made by any third party not identified herein, shall be binding or valid.

By signing below, Buyer and Seller acknowledge that each has read, understands, has received a copy of and agrees to the terms of this Seller in Possession Agreement.

Seller Signature

Name

Date

Buyer Signature

Name

Date